

Vikramaditya Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 10 September 2014 · WRIT - C No. - 48454 of 2014 · **Demand notice quashed; fresh provisional assessment with hearing directed**

HEADNOTE

Unserved provisional assessment in a theft case deprives the consumer of the right to object; a recovery demand under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 is quashed. The licensee must issue a fresh provisional assessment, serve it, allow fifteen days to object, fix a hearing, and pass a reasoned final assessment following Electricity Supply Code 2005 as considered in Ashok Kumar.

FACTUAL SUMMARY

A surprise raid at the petitioner's premises found electricity used for domestic purposes and a poultry farm, and alleged theft by connecting a cable bypassing the meter. He paid Rs 20,000 as compounding charges. A provisional assessment dated 26 May 2014 was sent by speed post but returned unserved because the residence was locked. No objection was filed; the assessment was treated as final. A demand notice dated 21 July 2014 under Section 3 of the U.P. Government Electrical Undertakings (Dues Recovery) Act, 1958 then required payment of Rs 1,12,874.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::theft-assessment

theft assessment — service of provisional assessment before recovery

HOLDING

Where the provisional assessment in a theft case is not served, the consumer is deprived of the opportunity to object; treating it as final and issuing a Section 3 recovery demand is unsustainable. The demand is quashed. The licensee must issue a fresh provisional assessment, serve it, give fifteen days to object, fix a date for hearing, and pass a reasoned final assessment after considering any objection, in light of the Electricity Supply Code 2005 theft-assessment procedure considered in Ashok Kumar (paras 56–64). ¶ 1

FLAG clause number not stated; court referred to ESC 2005 theft-assessment provisions as considered in Ashok Kumar paras 56–64

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE THEFT ASSESSMENT, INCLUDING ALLEGED POULTRY-FARM USE

Left to a fresh provisional assessment, objection, hearing and reasoned final order. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Ashok Kumar v. State of U.P.</i> 2008 (6) ADJ 660 (DB)			1	Referred